

Removal Of (Licensing Requirements, Stock Limits And Movement Restrictions) On Specified Foodstuffs Order, 2002

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Union of India - Act

Removal Of (Licensing Requirements, Stock Limits And Movement Restrictions) On Specified Foodstuffs Order, 2002

UNION OF INDIA

India

Removal Of (Licensing Requirements, Stock Limits And Movement Restrictions) On Specified Foodstuffs Order, 2002

Rule

REMOVAL-OF-LICENSING-REQUIREMENTS-STOCK-LIMITS-AND-MOVEMENT-RESTRICTIONS-ON-SPECIFIED-FOODSTUFFS-ORDER-2002 of 2002

Published on 15 February 2002

Commenced on 15 February 2002

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Removal Of (Licensing Requirements, Stock Limits And Movement Restrictions) On Specified Foodstuffs Order, 2002

Published vide Notification Gazette of India, Extra, Part 2, Section 3(ii), dated 15.2.2002

1619.

G.S.R. 104(E), dated 15.2.2002.- Whereas the Central Government is of the opinion that it is necessary and expedient to do so for securing the availability of commodities specified in the Order at fair prices throughout the Country.

Now, therefore, in exercise of the powers conferred by Section 3 of the Essential Commodities Act, 1955 (

10 of 1955

), the Central Government hereby makes the following Order:-

1.

Short Title, Extent and Commencement.-

(a)

This Order may be called the Removal of (Licensing Requirements, Stock Limits and Movement Restrictions) On Specified Foodstuffs Order, 2002.

(b)

It extends to all the States and Union Territories of India

(c)

It shall come into force after thirty days from the date of Publication in the Official Gazette.

[2. Definitions.- "Dealer" means any person engaged in the business of purchase, movements, sale, supply, distribution or storage for sale of any of the commodities specified in clause 3 whether as a wholesaler or retailer or producer or manufacturer or exporter or importer and whether or not in conjunction with any other business and includes his representative or agent but does not include a producer or manufacturer or importer or exporter of sugar.]

[Substituted by Notification No. G.S.R. 490(E) dated 16.6.2003 (w.e.f 15.2.2002)]

3.

With the coming into effect of this Order any dealer may freely buy, stock, sell, transport, distribute, dispose, acquire, use or consume any quantity of wheat, paddy/rice, coarsegrains, sugar, [edible oilseeds and edible oils, pulses, gur, wheat products (Namely maida, rava, suji, atta, resultant atta and bran) and hydrogenated vegetable oil or vanaspathi]

[Substituted by Notification No. G.S.R. 490(E) dated 16.6.2003 (w.e.f 15.2.2002)]

and shall not require a permit or license therefor under any order issued under the Essential Commodities Act, 1955.

4.

The provisions of this Order shall take effect notwithstanding anything to the contrary in any Order made by a State Government before the commencement of this Order except as respects anything done, or omitted to be done, thereunder before such commencement.

5.

Issue of any order by State Governments under powers delegated in GSR 452(E) dated the 25th October, 1972 issued by the Government of India in the then Ministry of Agriculture (Department of Food) and GSR 800(E) dated the 9th June, 1978 issued by the Government of India in the then Ministry of Agriculture and Irrigation (Department of Food) for regulating by license, permit or otherwise, the storage, transport, distribution, disposal, acquisition, use or consumption of any of the commodity specified in clause 3 shall require the prior concurrence of the Central Government.

6.

Nothing contained in this Order shall affect the operation of the Public Distribution System (Control) Order, 2001 issued by the Central Government and Orders of the State Governments issued in pursuance thereof.

[7. Nothing contained in this Order shall affect the operation of the levy orders issued by the State Governments for the purpose of procurement of rice as levy from the millers or dealers of paddy or rice in pursuance of the powers delegated to the State Governments by the Central Government under section 3 of the Essential Commodities Act, 1955.]

[Added by Notification No. G.S.R. 490(E) dated 16.6.2003 (w.e.f 15.2.2002)]

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